

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cynthia Ortiz	Team: Team # 4	CCRB Case #: 200712000	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 08/18/2007 6:10 PM	Location of Incident: Lafayette Avenue stop on A/C train	Precinct: 88	18 Mo. SOL 2/18/2009	EO SOL 2/18/2009	
Date/Time CV Reported Sun, 08/19/2007 1:51 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 08/19/2007 1:51 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Ryan McGuinness	04856	938991	TB DT33

Officer(s)	Allegation	Investigator Recommendation
A.POM Ryan McGuinness	Discourtesy: PO Ryan McGuinness spoke obscenely and rudely to § 87(2)(b) and § 87(2)(b)	
B.POM Ryan McGuinness	Force: PO Ryan McGuinness used physical force against § 87(2)(b) and § 87(2)(b)	

Synopsis

§ 87(2)(b) filed a complaint with the CCRB on August 19, 2007, via the call processing system, on behalf of her daughter § 87(2)(b) and her niece, § 87(2)(b). § 87(2)(b) did not witness the incident. On August 22, 2007 § 87(2)(b) and § 87(2)(b) were both contacted, at which time they both provided telephone statements. On August 18, 2007 at approximately 6:10pm, § 87(2)(b) and § 87(2)(b) were at the Lafayette Avenue train station on the A, C line in Brooklyn when § 87(2)(b) jumped the turnstile. PO McGuinness § 87(2)(b) received this name from her mother § 87(2)(b) who was called by PO McGuinness when § 87(2)(b) was taken to the precinct) stopped both § 87(2)(b) and § 87(2)(b) and asked to see identification. They both told him that they did not have any identification. PO McGuinness then told them both to put their hands behind their backs. § 87(2)(b) and § 87(2)(b) both put their hands behind their backs and PO McGuinness handcuffed them both. § 87(2)(b) then asked him why she was being arrested. PO McGuinness told her to, "Shut the fuck up." § 87(2)(b) said to him, "Oh you want to be rude" and began to argue back and forth with him. § 87(2)(b) began to walk away and PO McGuinness then went and grabbed her. When PO McGuinness grabbed § 87(2)(b) he was still holding on to § 87(2)(b) and "dragging" her, causing § 87(2)(b) to fall to the ground. PO McGuinness then jumped on top of § 87(2)(b) put his knee on her back and said something "smart," which she could not recall. She responded, "You don't like us to curse you out but you can curse us out." PO McGuinness then threw her against a gate and her face hit the gate. PO McGuinness also threw § 87(2)(b) against the gate as well and at one point called her a, "Bitch." § 87(2)(b) then hit the floor after he pushed her into the gate resulting in her bruising her knee. She also had bruises on her arms and swelling on her face due to this incident. § 87(2)(b) and § 87(2)(b) were then taken to Transit District 33. Neither § 87(2)(b) nor § 87(2)(b) received a summons. They both described PO McGuinness as a chubby uniformed Caucasian male with no glasses or facial hair. § 87(2)(g)

On August 22, 2007, after successfully contacting § 87(2)(b) and § 87(2)(b) an in-person interview was scheduled. § 87(2)(b) and § 87(2)(b) agreed to come into the CCRB for the interview on August 27, 2007. They both missed their scheduled appointment. An attempt to contact § 87(2)(b) and § 87(2)(b) via telephone, was made on August 28, 2007 in order to reschedule the appointments. Missed appointment letters were also mailed to § 87(2)(b) and § 87(2)(b) on August 28, 2007. The letters were not returned by the US Post Office. On September 5, 2007 § 87(2)(b) was successfully contacted, at which time she scheduled an appointment for her and § 87(2)(b) for September 7, 2007. On September 11, 2007 § 87(2)(b) contacted the undersigned and requested to schedule a third interview. § 87(2)(b) scheduled to come into the CCRB with § 87(2)(b) for September 21, 2007. § 87(2)(b) and § 87(2)(b) did not attend this third scheduled interview. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: